READ FIRST: HOW TO FILE YOUR RESPONSE

Kumar v. United States, No. 26-1250 (1st Cir.)

What this is. This is your response to the Government's motion asking the First Circuit to end your appeal without full briefing. If the court grants that motion, your appeal is over. The response asks the court to deny the motion. It also asks the court to hold that Judge Wolf's certificate of appealability of August 28, 2025 covers all of your claims, or else to give you 30 days to apply for an expanded certificate.

Read your Declaration first. It comes right after the certificates at the end of the response, and the response relies on it. Every statement in it must be true. Check these points in particular. Paragraph 2 says you first received notice of the August 28, 2025 order on January 27, 2026. Paragraphs 3 and 4 say you never received the May 8 and June 25, 2026 orders. Paragraph 5 says you did receive the July 1, 2026 order but believed it was a standard form, and did not understand that your certificate had been limited. Paragraph 7 says prison officials delivered the Government's motion to you on or about September 30, 2026. Paragraph 9 says that if you had known your certificate had been limited, you would have applied for an expanded certificate by July 31. If any statement is not true, do not sign or file anything. Tell the person who sent you this package so the response can be corrected. The Government can obtain the prison's legal-mail records.

What the response gives up. It concedes that no proffer letter would have protected the false statements in Count 3. If you disagree, do not file; raise it first.

What to fill in, sign and date (all on the day you mail it). First, sign and date the signature block at the end of the response. Second, sign the Certificate of Compliance. Third, on the Certificate of Service and Declaration of Inmate Filing, write the date you put the package in the legal mail system, then sign it. That date is the date your filing counts as made, so it must be accurate. Fourth, sign and date your Declaration.

Copies. Make four complete sets for the court: the original plus three copies. A complete set is the response, your Declaration, the index, and Exhibits A through F, with every page. Make one more complete set for the Government and one for yourself. Staple or clip each set securely. The original must carry your ink signatures.

Where to mail. Send the four sets to: Clerk, United States Court of Appeals for the First Circuit, John Joseph Moakley United States Courthouse, 1 Courthouse Way, Suite 2500, Boston, MA 02210. On the same day and in the same way, send one set to: Donald C. Lockhart and Kriss Basil, Assistant U.S. Attorneys, United States Attorney's Office, 1 Courthouse Way, Suite 9200, Boston, MA 02210.

How to mail. Use the prison's legal mail system with first-class postage prepaid. Your filing counts as made on the day you deposit it there, as long as the signed inmate-filing declaration is included. Ask for a receipt or log entry and keep it. Mail the package as soon as you sign it.

After you mail it. Keep your copy and your receipt. If your address or compound changes, write to the Clerk right away, giving the case number (26-1250) and your new address. Watch for the court's order. The Government may file a reply.